

Title: Dabur v. Patanjali — Ongoing "Dant Kanti Red" Trade Dress Dispute

Jurisdiction: India

Category: Case Law

Source Citation: Dabur India Limited v. Patanjali Ayurved Limited, CS(COMM) 33/2025, Delhi High Court (Justice Manmeet Pritam Singh Arora), ongoing as of late 2025

Plain English Summary:

Dabur sued Patanjali over the new "Dant Kanti Red (pan flavour)" toothpaste packaging launched in December 2024, alleging it too closely mimics the trade dress of Dabur's own long-running "Dabur Red" toothpaste. Notably, Dabur has clarified it has **no objection** to Patanjali using the word "Red," the pan-leaf symbol, or even its earlier packaging — the dispute is narrowly about the *new* design's specific visual similarity. Court-ordered mediation failed in August 2025, and the case proceeds on merits. For an Ayurvedic brand, this is a live, current illustration of how narrow and specific a trade-dress claim can be — competitors *can* use the same descriptive words and symbols, but not copy the exact combined visual presentation.

The Exact Legal Text:

[Ongoing litigation, not a statute — summarized case status.] The suit seeks a permanent injunction against Patanjali Ayurved's use of packaging for "Dant Kanti Red (pan flavour)" toothpaste, introduced in December 2024, which Dabur alleges imitates the trade dress of its "Dabur Red" toothpaste in a manner likely to mislead consumers as to origin. The matter was first referred to mediation in mid-2023/January 2025, during which the Court encouraged Patanjali to modify its trade dress; mediation was recorded as having failed on 1 August 2025, with the Court confirming the pre-institution mediation requirement under Section 12A of the Commercial Courts Act, 2015 had been satisfied, and granting Dabur exemption from a further mediation round. Interim relief proceedings and further hearings remain ongoing.

Keywords/Triggers:

Dabur vs Patanjali Dant Kanti, trade dress toothpaste dispute, ongoing Ayurveda trademark case, pan flavour packaging dispute, Section 12A Commercial Courts Act mediation, active litigation Ayurveda brand